Israel's courts: the flow chart

בתי המשפט בישראל: תרשים זרימה

How a case climbs, who picks the judges, and why the courts are at the center of Israel's biggest political fight.

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The ladder — המדרגות

Step	Court	What it does
1	Magistrates' Courts	The basic trial courts
2	District Courts	The middle level; hear appeals from Magistrates' Courts
3	Supreme Court (15 justices)	Hears appeals from the District Courts
3b	High Court of Justice (same Supreme Court)	First instance on challenges to actions of state authorities

The facts — העובדות

- Judicial power is vested in the Supreme Court, District Courts and Magistrates' Courts (plus other courts designated by law). Magistrates' Courts are the basic trial courts; District Courts are the middle level.
- The Supreme Court currently has 15 justices (the number is set by the Knesset) and hears appeals from the District Courts.
- The Supreme Court also sits as the High Court of Justice, acting as a court of first instance on challenges to the legality of actions of state authorities.
- A judge is appointed by the President of the State upon election by the Judicial Selection Committee (Sec. 4(a)).
- The Judicial Selection Committee has 9 members: the Supreme Court President and 2 other Supreme Court justices, the Justice Minister (chair) and 1 other minister, 2 Knesset members, 2 Israel Bar Association representatives. Supreme Court appointments need 7 of 9.
- Basic Law: The Judiciary (Amendment No. 4) passed 27 March 2025, 67 to 1 (opposition boycotted). It replaces the 2 Bar representatives with 2 lawyers chosen by coalition and opposition MKs, and lowers the Supreme Court threshold to 5 votes including one coalition-side and one opposition-side member. It takes effect when the next Knesset begins its term.
- As of 18 October 2026 the High Court has not ruled on the petitions against the 2025 law: an 11-justice panel heard them (June 2026), conditional orders were issued, final submissions were filed in late July 2026, and no ruling is reported through 8 Oct 2026. The next Knesset is elected on 27 Oct 2026.
- In United Mizrahi Bank (1995) the Supreme Court held that Basic Laws are superior to regular laws and that it may strike down statutes that conflict with them.
- The reasonableness amendment (Amendment No. 3 to Basic Law: The Judiciary) passed 24 July 2023 and eliminated review of the reasonableness of decisions of the government, PM and ministers. On 1 January 2024 (HCJ 5658/23) the Supreme Court voided it, 8 of 15 justices; 12 of 15 held the court may review Basic Laws in exceptional, extreme cases.

> **Both sides:** some see judicial review as a key check on power; others say it gives judges too much say. Facts as of 18 October 2026.

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